

G8.8 ENVIRONMENTAL PERFORMANCE

G8.8.1 Sustainability rating

Objectives

- O1 To ensure that a high level of sustainability is achieved by requiring a higher standard to be achieved than would typically apply to such development.
- O2 To maximise Greenstar rating for the new development.

Controls

- C1 The environmental performance of the site must consider the following matters:
 - a. 'energy': demand reduction, use efficiency, and generation;
 - b. 'water': reduction in potable water use, water reuse and use of other water sources;
 - c. 'management': sustainable development principles throughout the life of the project;
 - d. 'indoor air quality': enhanced building performance and wellbeing of occupants;
 - e. 'transport': reduction in demand for private car usage and encouraging alternative forms transportation;
 - f. 'building materials': reduction resource consumption through material selection, reuse and management practices;
 - g. 'emissions': mitigating point source pollution from buildings and building services to the atmosphere, watercourse, and local ecosystems; and
 - h. 'innovation': innovation that fosters the industry's transition to a more sustainable building as promoted by the Green Star Rating System.

G8.8.2 Drainage and water management

Objectives

- O1 To integrate water sensitive urban design into the development to reduce peak stormwater flows downstream, minimise transport of pollutants into waterways and maximise water recycling.

Controls

- C1 Stormwater Drainage System must be designed to comply with Part E of this Development Control Plan.
- C2 Any development of the site must also consider the following matters:
 - a. 'water': reduction in potable water use, water reuse and use of other water sources;
 - b. 'land use and ecology': reduction in the impact on the ecosystem.

G8.9 PARKING AND ACCESS

G8.9.1 Vehicular access

Objectives

- O1 To ensure that building vehicular access and egress points are best located to reduce potential for traffic conflict.
- O2 To ensure that the two land ownerships can be developed separately and independently of one another.
- O3 To ensure that vehicular access points are well-designed and secondary to pedestrian routes.

Controls

- C1 Two (2) vehicular access/egress points are to be located as per Figure G44 except if 141 and 159 Allen Street are amalgamated and developed at the same time in which case one (Access/Egress 1) vehicle ingress/egress point immediately north of Building A will be acceptable.

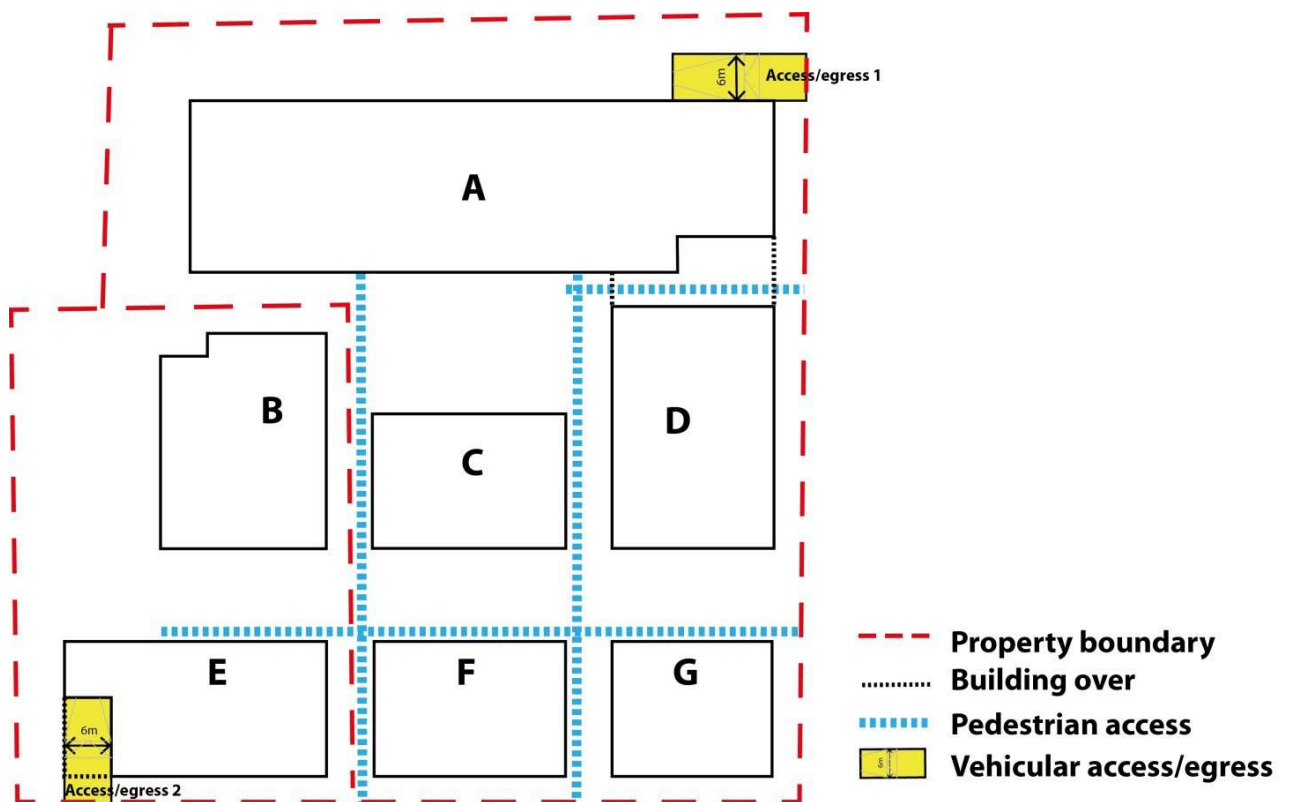


Figure G44: Vehicular and pedestrian access

- C2 Ramps and excavation required for vehicle access and egress is to be setback a minimum of 4.5m from the property boundary to allow for urban design outcomes in the streetscape.
- C3 Vehicular access and egress is to be no less than 6m in width.

G8.9.2 Parking rates

Objectives

- O1 To ensure adequate parking is provided.

Controls

- C1 The total number of car spaces for residents and visitors shall equate to the minimum of:
- a. 0.6 spaces per 1-bedroom dwelling;
 - b. 0.9 spaces per 2-bedroom dwelling;
 - c. 1.1 spaces per 3-bedroom dwelling or any dwelling with a greater number of bedrooms.
- C2 All bicycle parking is to comply with the provisions contained in the 'Parking' section of this Plan.

G8.10 WASTE AND RECYCLING MATERIALS STORAGE AND DISPOSAL

G8.10.1 Waste and recyclable materials temporary storage and disposal facilities

Objectives

- O1 To ensure that adequate on-site provision is made for the temporary storage and disposal of waste and recyclable materials.
- O2 To ensure that opportunities to maximise source separation and recovery of recyclables are integrated into the development.
- O3 To minimise risk to health and safety associated with handling and disposal of waste and recycled material and the potential for adverse environmental impacts associated with waste management.

Controls

- C1 The development is to comply with Part D Energy Section 2 Resource Recovery and Waste Management of this Plan.

SECTION 9 - 168 NORTON STREET, LEICHHARDT

Relationship to other plans

The following site specific controls apply to 168 Norton Street, Leichhardt.

Unless otherwise stated all development should be designed and constructed in accordance with the controls in this section and the provisions of this plan.

In the event of an inconsistency between this section and the remaining provisions of this DCP, the controls in this section shall prevail in relation to development on the site to the extent of the inconsistency.

Map Reference

Refer to Area 8 on the site specific map in Figure G1 Site Specific Areas.

G9.1 LAND TO WHICH THIS SECTION APPLIES

The site is known as 168 Norton Street Leichardt being Lot 1 DP 1119151, Lot 2 DP 1119151, Lot 1 DP 963000, Lot 3 Section 3 DP 328, Lot 4 Section 3 DP 328, and Lot 5 DP111235 (herein referred to as the 'site').

The site has a combined area of approximately 1,811sqm. The site has frontage to both Norton Street (eastern boundary) and Carlisle Street (portion of southern boundary), as well as a narrow laneway located adjacent to the western boundary.

G9.2 BACKGROUND

At its meeting on 23 April 2013, the former Leichhardt Municipal Council resolved to establish a planning agreement for the site to assist the provision of affordable and supported housing. The former Leichhardt Municipal Council subsequently commissioned Allen Jack + Cottier to work with the land owner and local community representatives to develop development guidelines for the site.

Community consultation was initiated in March 2014 to develop a set of 'Guiding Principles' relating to how development should proceed at the site. A draft building envelope and controls for the site were subsequently developed with reference to these principles, which were then subject to additional community exhibition. The guiding principles, indicative building envelopes and proposed development controls were endorsed by the former Leichhardt Council at their ordinary meeting on 16 December 2014.

G9.3 OBJECTIVES

To provide objectives and controls to guide development of the site so as to ensure that the development is compatible with the surrounding area, meets the desired future character and needs of the community. In particular, these objectives and controls aim to achieve a development that:

- O1 Complements the existing fine grain sub-division pattern and the desired future character of the streetscape and surrounding area.
- O2 Achieves architectural and urban design excellence.

SITE SPECIFIC CONTROLS

- O3 Maintains adequate solar access and amenity to surrounding residences.
- O4 Improves amenity and the overall appearance of Norton Street and Carlisle Street.
- O5 Renews the public domain on the site boundaries to complement the desired future character.
- O6 Activates the Norton Street streetscape and improves pedestrian access and encourages the use of public transport.

G9.4 DESIRED FUTURE CHARACTER STATEMENT

The site is within the Leichhardt Commercial Distinctive Neighbourhood (Section C2.2.3.5 of this plan) and the Norton Street – Centro Sub Area (Section C2.2.3.5(c)) and borders the Civic Area - Collina Sub Area on the southern boundary.

- O1 The new character of the site should:
 - a. respond to the topography of the site, the character of Norton Street, and adjacent residential uses;
 - b. maintain the varied character of the area by ensuring new development is complementary in terms of its architectural style, built form and materials;
 - c. promote building styles that enhance and contribute to the identity of the neighbourhood;
 - d. protect and enhance existing Heritage Items and the heritage significance of the Heritage Conservation Area;
 - e. reflect the fine-grain character of the area through inclusion of strong vertical 'fine grain' building articulation;
 - f. maintain and enhance the streetscape of Norton Street and Carlisle Street;
 - g. incorporate high quality materials and construction finishes;
 - h. enhance pedestrian amenity by ensuring continuous weather protection within the commercial area; and
 - i. encourage redevelopment to reflect the small shopfront character of the area.

G9.5 PUBLIC DOMAIN

G9.5.1 Active Frontages

Objectives

- O1 To ensure that uses and frontages of buildings on Norton Street contribute to the activation of the public domain.
- O2 To ensure that the design of residential frontages maximise surveillance of the public domain and reinforce the activation of the street environment.
- O3 To ensure that façade articulation and elements within the building setback areas facilitate an active street environment.

Controls

- C1 The ground floor of development located on Norton Street should accommodate active uses such as shops, cafes and restaurants and appropriate commercial uses and access to buildings.
- C2 Level pedestrian access should be provided to non-residential ground floor uses.
- C3 Building frontages located above the ground floor should include living areas such as living rooms, dining rooms and bedrooms to overlook the street for passive surveillance.
- C4 Building frontages should incorporate balconies, windows, fenestration and other built form elements wherever possible to maximise opportunities for passive surveillance of the street.

G9.5.2 Awnings

Objectives

- O1 To ensure that awnings or weather protection structures serve to enhance public use and amenity of non-residential ground floor buildings and the streetscape.

Controls

- C1 Development located on Norton Street should incorporate an awning or weather protection structure at first floor level.
- C2 The setback from the kerb and height above street level of any awning or weather protection structure should generally be consistent with the adjoining properties.
- C3 Awnings and weather protection structures are to be complementary to the building and streetscape in terms of materials, detailing and form.

G9.6 BUILT FORM AND DESIGN

G9.6.1 Building Height and Bulk

Objectives

- O1 To ensure that the height of development responds to the existing and future scale, character and form of the streetscape and surrounding area.
- O2 To maintain solar access and amenity to surrounding residences and the public domain.
- O3 To minimise overshadowing of surrounding properties and public domain.
- O4 To ensure development has a bulk and scale which reflects the surrounding context.
- O5 To minimise visual impacts of building bulk on neighbouring and nearby properties.
- O6 To integrate the new development with the scale and character of the streetscape and surrounding area using a stepped transition of the number of storeys in the building.

Controls

- C1 Development should not exceed the maximum height in storeys and RL's as shown in Figure 1.

SITE SPECIFIC CONTROLS

- C2 Development along the Norton Street frontage is to have a maximum Reduced Level (RL) of 47.20 equivalent to 4 storeys with the fifth storey setback from the lower levels by 6m.
- C3 Development along the Carlisle Street frontage is not to exceed a maximum RL of 43.60 equivalent to 3 storeys with the fourth storey setback from the lower levels by 3m.
- C4 Development along the rear laneway on the western site boundary is not to exceed a maximum RL of 43.60 equivalent to 3 storeys with setbacks to the upper two levels.
- C5 Development on the northern site boundary is not to exceed a maximum RL of 40.40 equivalent to two storeys with the upper three levels setback by a minimum of 6m from the site boundary.
- C6 The maximum height permitted is not to exceed five storeys (RL 50.40) in the centre of the site.
- C7 Development of the site is to comply with the maximum building envelopes as shown in Figures 2 - 5, which reflect the 32° winter shadow angle taken from RL 47.20 on the western side of Carlisle Street.
- C8 Structures including roof elements and lift overruns may be provided on rooftops, subject to consideration of potential impacts on the streetscape, the amenity of the adjoining properties and the overall character of the area.

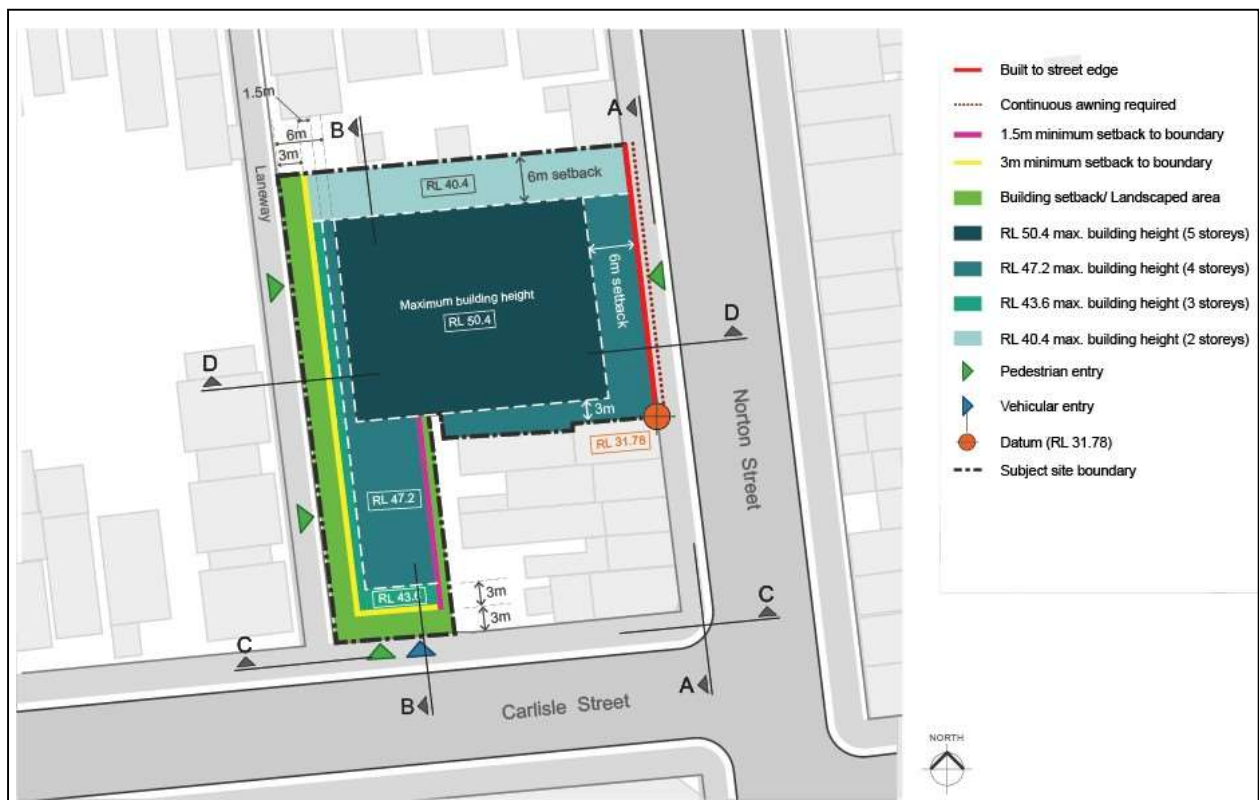


Figure G45: Building heights and Massing envelope

This architectural site plan illustrates the proposed building layout and its relationship to the surrounding environment. The plan is oriented with South at the top and North at the bottom, with a scale bar indicating an approximate width of 57m.

Building Levels and Structure:

- Basement:** The lowest level, shown in grey, with a datum elevation of RL 31.78.
- Level 1:** The ground floor, shown in grey, with a datum elevation of RL 31.78.
- Level 2:** The first floor, shown in light blue, with a 1.1m balustrade.
- Level 3:** The second floor, shown in light blue, with a 1.1m balustrade.
- Level 4:** The third floor, shown in light blue, with a 1.1m balustrade.
- Level 5:** The top floor, shown in light blue, with a 1.5m plant lift overrun.

Setbacks and Height Restrictions:

- Setback 6m:** Indicated on the right side of the building footprint.
- Max height RL 43.60:** Indicated on the left side of the building footprint.
- Max height RL 47.20:** Indicated on the left side of the building footprint.
- Max height RL 50.40:** Indicated on the right side of the building footprint.
- Max height RL 40.40:** Indicated on the right side of the building footprint.

Solar Angles and Orientation:

- Spring/autumn sun (approx) 12pm:** Indicated by a dashed yellow line at a 37° solar angle.
- Winter sun (approx) 12pm:** Indicated by a dashed yellow line at a 37° solar angle.

Other Features:

- Royal Hotel:** Located to the left of the proposed building.
- CARLISLE STREET:** The street frontage of the proposed building.
- Property boundary:** Indicated by dashed lines on the left and right sides of the building footprint.

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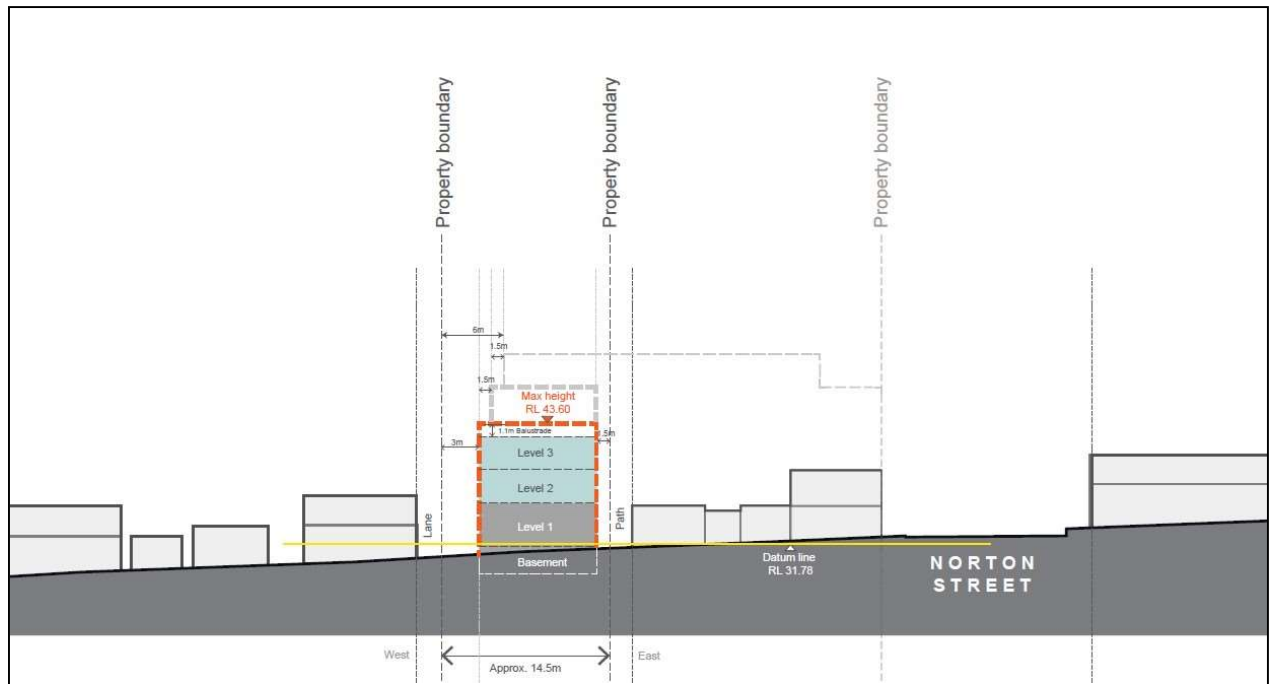


Figure G48: Building heights and Massing envelope - Section C (Carlisle Street elevation)

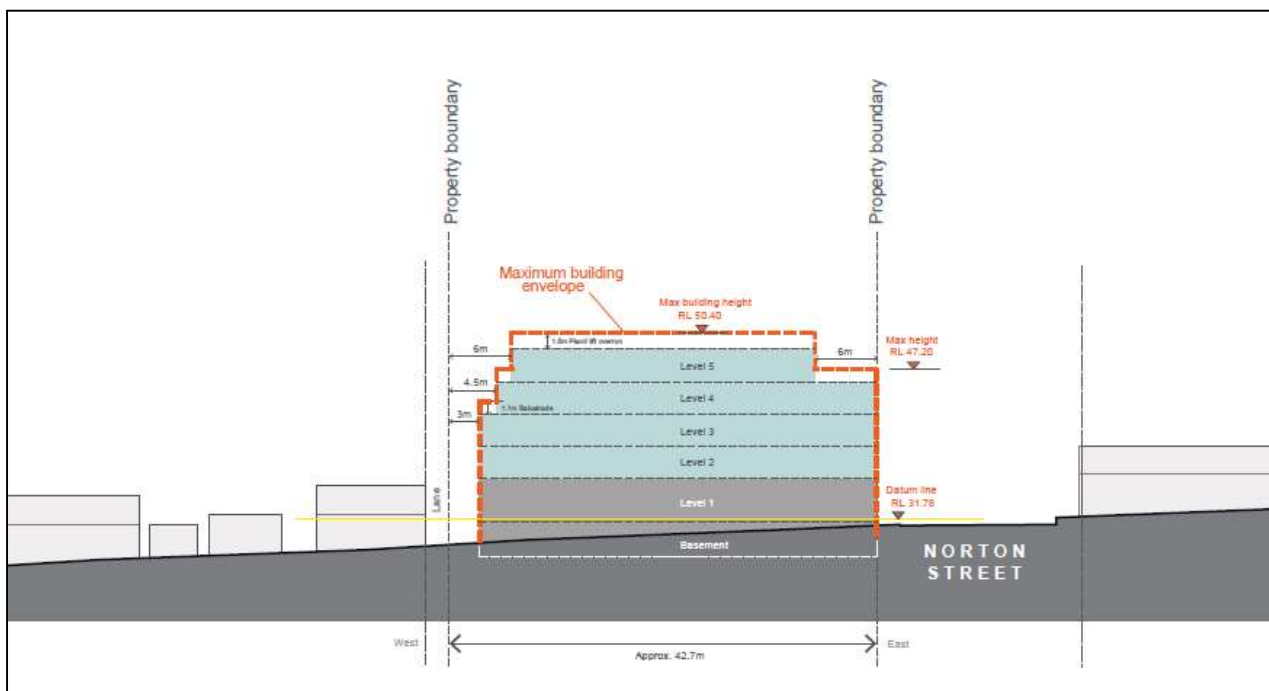


Figure G49: Building heights and Massing envelope - Section D

G9.6.2 Building setbacks, separation and articulation

Objectives

- O1 To ensure that buildings are modulated and articulated to respond to streetscape, visual bulk and amenity issues.

SITE SPECIFIC CONTROLS

- O2 To maintain solar access and amenity to surrounding residences, the public domain and development within the site.
- O3 To ensure that the building mass and articulation along 168 Norton Street complements the articulation and character of the street.
- O4 To create good neighbourhood design by carefully designing the bulk and scale of development to relate to the surrounding properties.
- O5 To ensure that buildings have adequate separation to minimise visual bulk and to ensure adequate amenity within the site and on the neighbouring properties.

Controls

All Development

- C1 Minimum setbacks should be provided in accordance with those specified in this section unless demonstrated that the privacy and amenity of the residents of development on this site and of neighbouring properties can be maintained with smaller setbacks.
- C2 Development should be located within the envelopes shown in Figures 2 - 5 to ensure appropriate separation from adjoining properties.
- C3 Façades addressing the public domain should be articulated through the use of balconies, windows and fenestration.
- C4 Apartments layouts are to be designed to minimize over-looking to surrounding properties.

Norton Street

- C5 Development on Norton Street should be built to the street alignment to continue the strong street edge and have a maximum four (4) storey frontage (RL 47.20) addressing Norton Street.
- C6 The fifth (5th) Level is to be setback by a minimum of 6m from the Norton Street boundary. The setback is to be sufficient to ensure this level is not obtrusive when viewed from the public domain, and provide a human scale to Norton Street.

Carlisle Street

- C7 The building fronting Carlisle Street to have a maximum height of four (4) storeys.
- C8 The first three (3) storeys fronting Carlisle Street are to provide a minimum setback of 3m.
- C9 The fourth/uppermost storey fronting Carlisle Street is to be setback by 3m from the lower levels to reduce its bulk and scale as viewed from the street and surrounding area.

Rear Laneways

- C10 Development on the rear laneway is to be setback by a minimum of 3m from the western site boundary.
- C11 Development on the rear laneway is to have a maximum wall height of three (3) storeys with the fourth storey setback by 1.5m from the lower levels and the fifth storey setback by a minimum of 6m from the site boundary.
- C12 The building is to be setback approximately 1.5m from the boundary that adjoins the existing service laneway on the eastern boundary.

Northern Site boundary

- C13 The 3rd, 4th and 5th storey to be setback by a minimum of 6m from the site boundary.
- C14 Despite the above sub clause, any development on the northern boundary must ensure that there are minimal overlooking impacts on the private open space of the adjoining residential properties.

G9.6.3 Building materials and finishes

Objectives

- O1 To ensure that buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Building and landscape materials are to be fit for purpose and reflect the Desired Future Character Statement, be appropriate for climatic conditions and be of high specification to ensure long term quality and sustainability of the development.
- C2 Materials to be used may include:
- a. Heavy materials for the base structure: concrete, masonry, render;
 - b. Lightweight materials for the top of the building to allow flexibility in roof form: steel, aluminum and other metallic materials;
 - c. Screening elements: to provide enhanced privacy to the occupants of the development as well as to adjoining residential properties; and
 - d. Intended building materials are to be clearly identified on the Development Application documentation.
- C3 Any building with a wall greater than 20m in length is to include building material palette options, architectural fenestration elements and insets to articulate the façade and delineate visual massing of buildings.

G9.6.4 Design of building elements

Objectives

- O1 To ensure that fronts, backs and tops of buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Buildings are to be designed in accordance with the Desired Future Character Statement.
- C2 The design of the buildings should be contemporary in nature but make reference to the form, scale and articulation of the local streetscapes.
- C3 Buildings and landscape elements, including balconies, entries, rooflines and screening, are to contribute to the character of the streetscape, enhance opportunities for visual supervision of the public domain, reduce overlooking, enhance residential amenity and make a positive contribution to place identity.
- C4 The design of the buildings should be of contemporary design, be fit for purpose for those visiting, working, or residing within the development and nearby.

SITE SPECIFIC CONTROLS

- C5 Where the topography results in basement walls exceeding 0.5m above natural ground level, high quality materials or plantings are to be used to minimise visual impacts.

G9.7 PARKING AND ACCESS

G9.7.1 Vehicular access

Objectives

- O1 To ensure that building vehicular access and egress points are best located to reduce potential for traffic conflict.
- O2 To ensure that vehicular access points are well-designed and secondary to pedestrian routes.

Controls

- C1 Vehicle access and egress points will be provided from Carlisle Street located on the southern boundary of the site.in accordance with the Figure 1.
- C2 Vehicular access and pedestrian entries be designed sympathetic to the surrounding development and integrated with the Carlisle Street frontage landscaped and the overall design.
- C3 Vehicle access should be separated from pedestrian entries to avoid pedestrian vehicular conflict.

G9.8 WASTE AND RECYCLING MATERIALS STORAGE AND DISPOSAL

G9.8.1 Waste and recyclable materials temporary storage and disposal facilities

Objectives

- O1 To ensure that adequate on-site provision is made for the temporary storage and disposal of waste and recyclable materials.
- O2 To ensure that opportunities to maximise source separation and recovery of recyclables are integrated into the development.
- O3 To minimise risk to health and safety associated with handling and disposal of waste and recycled material and the potential for adverse environmental impacts associated with waste management.

Controls

- C1 Waste management and storage areas are to be located, designed and constructed to ensure integration into the streetscape of the southern boundary on Carlisle Street.
- C2 All waste management facilities to comply with the Resource Recovery and Waste Management provisions contained in D2.5 Mixed Use Development of this Plan.
- C3 A completed Site Waste Minimisation and Management Plan (SWMMP) should accompany any development application.

G9.9 RESIDENTIAL AMENITY

Objectives

- O1 To ensure that the development receives adequate access to sunlight.
- O2 To ensure that the development receives adequate ventilation.
- O3 To maximise internal amenity to the building.
- O4 To ensure adequate privacy and amenity is maintained to adjoining and adjacent properties.

Controls

G9.9.1 Visual Privacy

- C1 All development is to comply with the visual privacy provisions contained in C3.11 Visual Privacy of this Plan.
- C2 Separation between windows and balconies is to be provided to ensure appropriate levels of visual privacy are achieved.
- C3 Reduced separation may be considered where visual privacy has been minimized by preventing direct over-looking to private open space and/or habitable rooms. This can be achieved through carefully positioned windows, openings, and balconies, and/or where other privacy mechanisms, such as privacy screens/planter boxers/balustrades, have been utilized.
- C4 No separation is required between blank walls.

G9.9.2 Solar Access

- C5 Solar access to existing adjacent and nearby properties is to be maintained.
- C6 The building is to be designed and oriented to minimize overshadowing and loss of solar access to adjacent and nearby properties.
- C7 For Residential Apartment Development, the following applies:
- C8 Living rooms and private open spaces of at least 70% of apartments in a building receive a minimum of 2 hours direct sunlight between 9 am and 3 pm at mid winter.
- C9 For all other development, direct sunlight is to be maximized within the building. Buildings are designed to reduce energy use and make the best practicable use of solar heating and lighting by locating the windows of living and dining areas in a northerly direction. Where northerly aspect is not possible, ensure these areas maximize access to daylight.

G9.9.3 Cross Ventilation

- C10 At least 60% of the total number of residential apartment dwellings within the building are naturally cross ventilated in accordance with the Apartment Design Guide (ADG) which forms part of State Environmental Planning Policy No. 65 - Design Quality of Residential Flat Buildings (SEPP 65)

G9.10 LANDSCAPING

Objectives

- O1 To promote landscaping within the site that contributes to the streetscape as well as residential amenity.
- O2 To ensure that a suitable area of the site is used for landscaping and deep soil planting which will add to the amenity of the site and the public domain.

Controls

- C1 A minimum of 10% of the site area should provide deep soil planting.
- C2 Deep soil plantings are to be included within the western boundary setback, and within the setback to Carlisle Street.
- C3 A minimum of 85% of deep soil plantings are to be indigenous to the Leichhardt or Sydney area to contribute to the character of the area, as well as the presentation of the site to the public domain.
- C4 Plantings on structures are to be maximized where possible, to contribute to the amenity of private open space for the residents.
- C5 For the purpose of this Section, Deep Soil plantings are to be taken as any part of the site that are landscaped with vegetation, and does not include any structure, building, or hard paving.

SECTION 10 - 17 MARION STREET, LEICHHARDT

Relationship to other plans

The following site specific controls apply to 17 Marion Street, Leichhardt.

Unless otherwise stated all development should be designed and constructed in accordance with the controls in this section and the provisions of this plan.

In the event of an inconsistency between this DCP and the Leichhardt DCP 2013 and any other DCP, policy or code, the controls in this section shall prevail in relation to development on the site.

Map Reference

Refer to Area 9 on the map in *Figure G1 – Site Specific Areas*.

G10.1 LAND TO WHICH THIS SECTION APPLIES

The site is known as 17 Marion Street Leichhardt being Lot 25 Sec 1 DP 328, Lot 24 Sec 1 DP 328, Lot A DP 377714, Lot B DP 377714, Lot 22 Sec 1 DP 328, Lot 21 Sec 1 DP 328 (herein referred to as the 'site').

The site has a combined area of approximately 3,295sqm. The site is located on the northern side of Marion Street within a block bound by Cromwell Street and Norton Street, Leichhardt.

G10.2 BACKGROUND

At its meeting on 23 April 2013, Leichhardt Municipal Council resolved to commence negotiations with the land owner to establish a Memorandum of Understanding for the site to assist with the provision of affordable and supported housing. Leichhardt Municipal Council subsequently commissioned Allen Jack + Cottier to work with the land owner and local community representatives to develop development guidelines for the site.

Community consultation was initiated in March 2014 to develop a set of 'Guiding Principles' relating to how development should proceed at the site. A draft building envelope and controls for the site were subsequently developed with reference to these principles, which were then subject to additional community consultation. The guiding principles, indicative building envelopes and proposed development controls were endorsed by Leichhardt Council at their ordinary meeting on 16 December 2014.

G10.3 OBJECTIVES

To provide the following objectives and controls to guide development of the site that are compatible with the surrounding area, help create the desired future character and meet the needs of the community:

- O1 Complements the existing fine grain residential sub-division pattern and the desired future character of the streetscape.
- O2 Achieves architectural and urban design excellence.
- O3 Maintains adequate solar access and amenity to surrounding residences.
- O4 Reinforces and enhances the landscape character of the street.
- O5 Improves amenity and townscape of Marion Street.
- O6 Renew the public domain on the site boundary.

G10.4 DESIRED FUTURE CHARACTER STATEMENT

The site is within the West Leichhardt Distinctive Neighbourhood (Section C2.2.3.2 of this plan).

- O1 The new character of the site should:
 - a. Maintain the varied character of the area by ensuring new development is complementary in terms of its architectural style, built form and materials;
 - b. Promote building styles that enhance and contribute to the identity of the neighbourhood;
 - c. Protect and maintain the residential amenity of neighbouring dwellings;
 - d. Protect and enhance Heritage Items and buildings of historical significance;
 - e. Allow for contemporary development, which is complimentary to the existing streetscape;
 - f. Protect existing street trees and mature, visually significant trees on private land;
 - g. Maintain views from the public domain to the east of the All Souls Church spires and Leichhardt Town Hall by stepping development down contours along the slope of Marion Street.

G10.5 BUILT FORM AND DESIGN

G10.5.1 Building Height and bulk

Objectives

- O1 To ensure that height of development responds to the existing and future scale, character and form of the streetscape and surrounding area.
- O2 To maintain solar access and amenity for surrounding residences, the public domain and development within the site.
- O3 To minimise overshadowing of surrounding properties and the public domain.

SITE SPECIFIC CONTROLS

- O4 To ensure development has a bulk and scale which responds to the surrounding context.
- O5 To integrate the new development with the scale and character of the streetscape and surrounding area through a transition of building heights, reflected in the number of storeys.
- O6 To minimise visual impacts of building bulk on neighbouring and nearby properties.

Controls

- C1 Development should not exceed the maximum height in storeys and RL's shown in Figure 50.
- C2 Development of the site is to comply with the maximum building envelopes shown in Figures 51 and 52.
- C3 The development is to be integrated with the scale and character of the surrounding neighbourhood.
- C4 Structures including roof elements and lift overruns may be provided on rooftops, subject to consideration of potential impacts on the streetscape, the amenity of the adjoining properties and the overall character of the area.



Figure G50: Building Heights and Massing Envelope

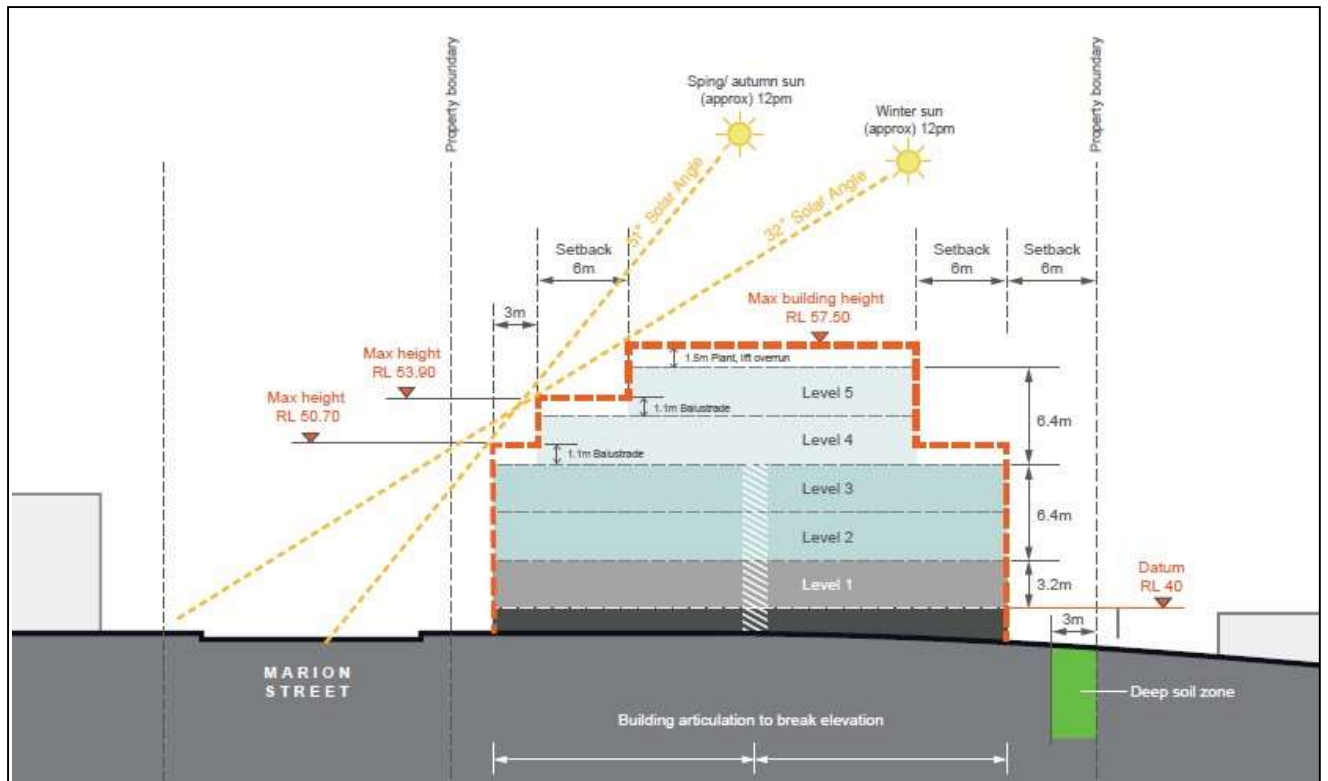


Figure G51: Building Heights and Massing Envelope – Section A (north-south)

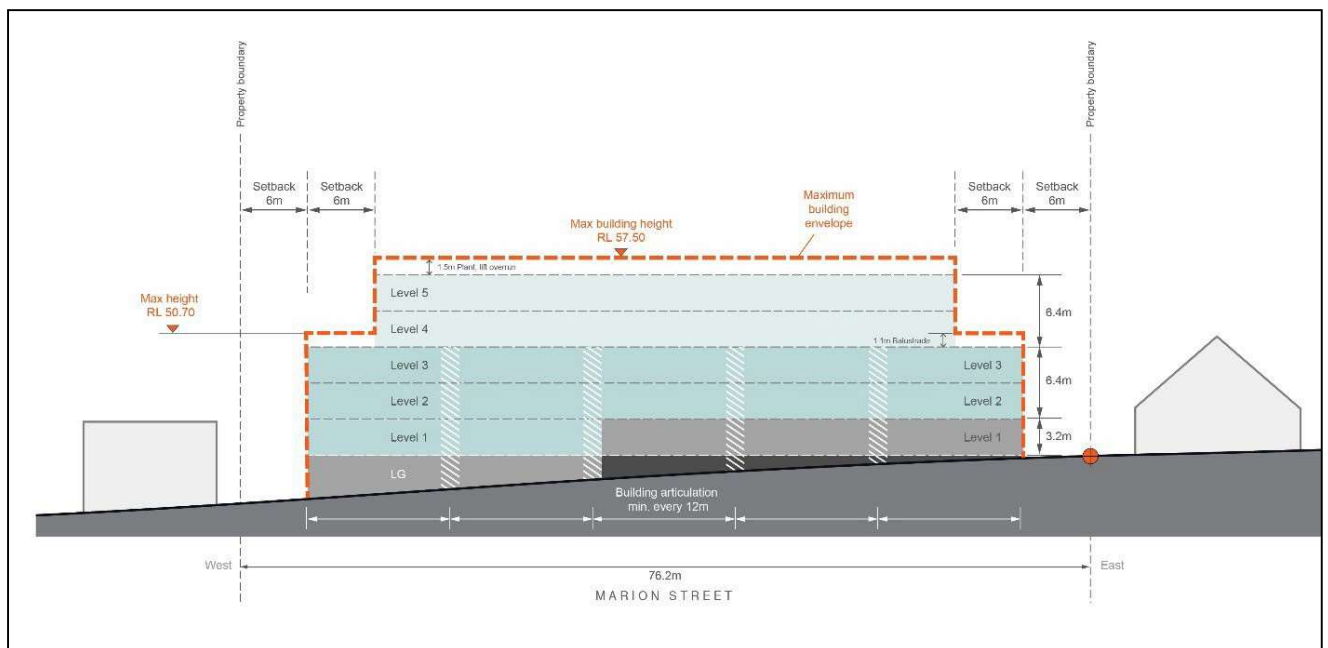


Figure G52: Building Heights and Massing Envelope – Section B (east-west)

G10.5.2 Building setbacks, separation and articulation

Objectives

SITE SPECIFIC CONTROLS

- O1 To ensure that buildings are modulated and articulated to respond to streetscape, visual bulk and amenity issues.
- O2 To maintain solar access and amenity to surrounding residences, the public domain and development within the site.
- O3 To carefully design the bulk and scale of the building to minimise visual impacts on neighbouring properties.
- O4 To maintain views from the public domain to the Town Hall and Church Spire.
- O5 To ensure that buildings have adequate separation to minimise visual bulk and to ensure adequate amenity within the site.

Controls

- C1 Setbacks should be provided in accordance with the details in Figure 1.
- C2 Development should be located within the envelopes shown in Figures 2 - 3 to ensure appropriate separation from adjoining properties.
- C3 The maximum length of solid wall without modulations along any frontage visible from the nearby properties or public domain will be no greater than 12 metres to create breaks in the building mass.
- C4 The development must retain the existing view lines to nearby heritage items and other key features. Additional setbacks may be required to the upper levels along Marion Street to maintain key views.
- C5 Building façades are to be articulated into smaller elements or distinctive treatments that reflect:
 - a. different uses and/or components of the building;
 - b. the width of historic buildings along Marion Street;
 - c. building entries; and
 - d. the ground floor, lower floors , top floor and roof.

G10.5.3 Building materials and finishes

Objectives

- O1 To ensure that buildings have a high quality appearance and respect the character of the surrounding area.

Controls

- C1 Building and landscape materials are to be fit for purpose, appropriate for climatic conditions and have a high specification to ensure long term quality and sustainability.
- C2 Any new building materials and finishes are to complement the prevailing or desired future character of the neighbourhood. The use of face brick and/or painted and rendered brickwork is encouraged.
- C3 The use of distinctively modern off-form concrete, glass, steel, aluminium and other metallic materials, for example for walling is discouraged.
- C4 Colour schemes are to be compatible with those prevailing in the street.

SITE SPECIFIC CONTROLS

- C5 The building facade to the street is to include building material palette options, architectural fenestration elements and insets to articulate the façade and delineate visual massing.

G10.5.4 Design of building elements

Objectives

- O1 To ensure that the front, back and top elevations of the building have a high quality appearance and regard to the character of the surrounding area.

Controls

- C1 Buildings are to be designed in accordance with the DCP Desired Future Character Statement for the area.
- C2 The design of the buildings should be contemporary, fit for purpose and make reference to the form, scale and articulation of local streetscapes.
- C3 Buildings and landscape elements, including balconies, entries, rooflines and screening, are to contribute to the character of the streetscape, enhance opportunities for informal visual supervision of the public domain, reduce overlooking of private property, enhance residential amenity and make a positive contribution to place identity.
- C4 Building facades are to consider the established built character of historic buildings in the locality with regards to:
- a. The ratio of solid finishes to glazing;
 - b. The vertical proportions of windows; and
 - c. The use of vertical timber or metal balustrades for balconies
- C5 Where the topography results in basement walls exceeding 0.5m above natural ground level, high quality planting or materials are to be used to minimise visual impacts.

G10.6 RESIDENTIAL AMENITY

Objectives

- O1 To ensure that the development receives adequate access to sunlight.
- O2 To ensure that the development receives adequate ventilation.
- O3 To maximise internal amenity to the building.
- O4 To protect the visual privacy of adjoining dwellings by minimising direct overlooking of principal living areas and private open space.
- O5 To provide landscaping around built structures that maintains the privacy of the neighbouring properties.

Controls

G10.6.1 Visual Privacy

- C1 All development is to comply with the visual privacy provisions of C3.11 Visual privacy of this Plan.

SITE SPECIFIC CONTROLS

G10.6.2 Solar access

- C1 Solar access to existing adjacent and nearby properties is to be maintained.
- C2 The building is to be designed and oriented to minimise overshadowing and loss of solar access for adjacent and nearby properties.
- C3 The residential component of the development is to satisfy the solar access requirements set out in the Apartment Design Guide (ADG) (which forms part of the *State Environmental Planning Policy No 65 - Design Quality of Residential Flat Buildings (SEPP 65).*)

G10.7 LANDSCAPING

Objectives

- O1 To improve the amenity of adjoining residences and those in the new development by providing a deep soil landscaped area between properties.

Controls

- C1 Minimum landscaped area is to be provided in accordance with the clause 4.3C *Landscaped areas of residential accommodation in Zone R1 of the Inner West LEP 2022.*
- C2 The deep soil landscaped zone is to be suitably landscaped, including the planting of suitable canopy trees that restrict minimise overshadowing of adjoining properties.
- C3 Existing established trees along the northern boundary of the site should be retained and the setback to the boundary augmented with additional trees.
- C4 Basement car parking should be located beneath the building footprint where possible to maximise landscaping opportunities.
- C5 A Landscape Plan of Management/Maintenance Plan shall be submitted with the development application.

G10.8 PARKING AND ACCESS

G10.8.1 Vehicular access and Parking

Objectives

- O1 To ensure that building vehicular access and egress points are best located to reduce the potential for traffic conflict.
- O2 To ensure that vehicular access points are well-designed and secondary to pedestrian routes.

Controls

- C1 Vehicle access and egress points will be provided from the western part of the site generally in accordance with Figure 1.
- C2 Vehicle access will be separated from pedestrian entries to avoid pedestrian vehicular conflict.
- C3 All building vehicular access and egress points are subject to final Council approval.

G10.9 WASTE AND RECYCLING MATERIALS STORAGE AND DISPOSAL

G10.9.1 Waste and recyclable materials temporary storage and disposal facilities

Objectives

- O1 To ensure that adequate on-site provision is made for the temporary storage and disposal of waste and recyclable materials.
- O2 To ensure that opportunities to maximise source separation and recovery of recyclables are integrated into the development.
- O3 To minimise risk to health and safety associated with handling and disposal of waste and recycled material and the potential for adverse environmental impacts associated with waste management.

Controls

- C1 Waste management and storage areas are to be located, designed and constructed to ensure integration into the Marion Street streetscape.
- C2 A completed Site Waste Minimisation and Management Plan (SWMMP) must accompany any development application.

SECTION 11 – 1-5 CHESTER STREET, ANNANDALE

Relationship to other plans

The following site-specific controls apply to 1-5 Chester Street, Annandale.

Unless otherwise stated all development should be designed and constructed in accordance with the controls in this section and the provisions of this plan.

In the event of an inconsistency between this section and the remaining provisions of this DCP, the controls in this section shall prevail in relation to development on the site to the extent of the inconsistency.

Relationship to State Environmental Planning Policy (Affordable Rental Housing) 2009

If there is an inconsistency between the provisions of this DCP and State Environmental Planning Policy (Affordable Rental Housing) 2009, the provisions of the SEPP prevail to the extent of the inconsistency.

G11.1 LAND TO WHICH THIS SECTION APPLIES

This section applies to 1-5 Chester Street, Annandale being Lot 11 DP499846 (the site). Refer to Area 10 in *Figure G1 - Site Specific Areas* and Figure G53 below.

The site has an area of 1,307m² and is located on the western side of Chester Street and to the east of Johnstons Creek canal.

G11.2 BACKGROUND

The site is the subject of a planning proposal which rezones the land from IN2 Light Industrial to B7 Business Park with boarding house for student housing as an additional permitted use and changes the height and floor space ratio controls.

The site is within the Camperdown Ultimo Collaboration Area, and the planning proposal supports the implementation of the February 2019 Place Strategy for the Collaboration Area. The Camperdown Ultimo Collaboration Area Place Strategy identified the need for affordable student housing and employment floor space to support innovation, research, creative industries and artists, and collaborative projects.

G11.3 RELATIONSHIP TO OTHER SECTIONS OF THE LEICHHARDT DCP

Unless otherwise stated, development of the site should be designed and constructed in accordance with the controls in this section and all other relevant provisions of this plan.

In the event of an inconsistency between this section and other provisions of this DCP, the controls in this section shall prevail in relation to development on the site.



Figure G53: The site

G11.4 OBJECTIVES

- O1 To provide high quality affordable student housing and flexible floor space to accommodate a range of business premises, office premises and light industries in the technology, bio-medical, arts, production and design sectors.
- O2 To respond to the existing and future context and character of the area, including the industrial heritage.
- O3 To achieve architectural and urban design excellence.
- O4 To enhance and activate the public domain.
- O5 To maintain adequate solar access and amenity to surrounding residences.
- O6 To ensure the amenity of future residents of the development.
- O7 To contribute to the rehabilitation and greening of the Johnstons Creek corridor.
- O8 To provide for future connectivity along the Johnstons Creek corridor.
- O9 To ensure appropriate access arrangements, including supporting commercial and light industrial uses.
- O10 To encourage active transport and support public transport mode share.
- O11 To ensure an ecologically sustainable development outcome.

G11.5 DESIRED FUTURE CHARACTER STATEMENT

The site is within the Camperdown Distinctive Neighbourhood (Section C2.2.1.8 of this DCP).

The new character of the site should:

SITE SPECIFIC CONTROLS

- O1 Positively contribute to the transition of the Camperdown Ultimo Collaboration Area to a high density health and education precinct.
- O2 Achieve design excellence in a high quality built form that responds to the local character, topography and heritage context of the surrounding area through appropriate design and use of materials.
- O3 Protect and enhance existing Heritage Items and the Annandale Heritage Conservation Area.
- O4 Protect and enhance the residential amenity of neighbouring dwellings and ensure the amenity of residents within the development.
- O5 Enhance and activate the surrounding public domain, including by locating lower level non-residential uses facing Chester Street and the Johnstons Creek corridor.
- O6 Enhance and re-vegetate the frontage to Johnstons Creek and provide a landscaped section of Johnstons Creek cycle and pedestrian path to facilitate future connectivity.

G11.6 BUILT FORM, HEIGHT AND DESIGN

Objectives

- O1 To integrate new buildings with the adjoining and neighbouring buildings with an appropriate transition of building heights.
- O2 To ensure building heights minimise impacts on the surrounding area including existing dwellings and open space.
- O3 To minimise overlooking and overshadowing of neighbouring properties.

Controls

- C1 The built form layout is to be generally consistent with Figure G54.
- C2 The maximum height of buildings including any lift-overruns is 17m and no more than 5 storeys.
- C3 The proposed building design shall be consistent with that shown in Figure G54 and Figure G55 to minimise visual impacts, excessive building scale, overshadowing issues and facilitate the Johnstons Creek corridor landscaped pedestrian and cycleway.

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SITE SPECIFIC CONTROLS

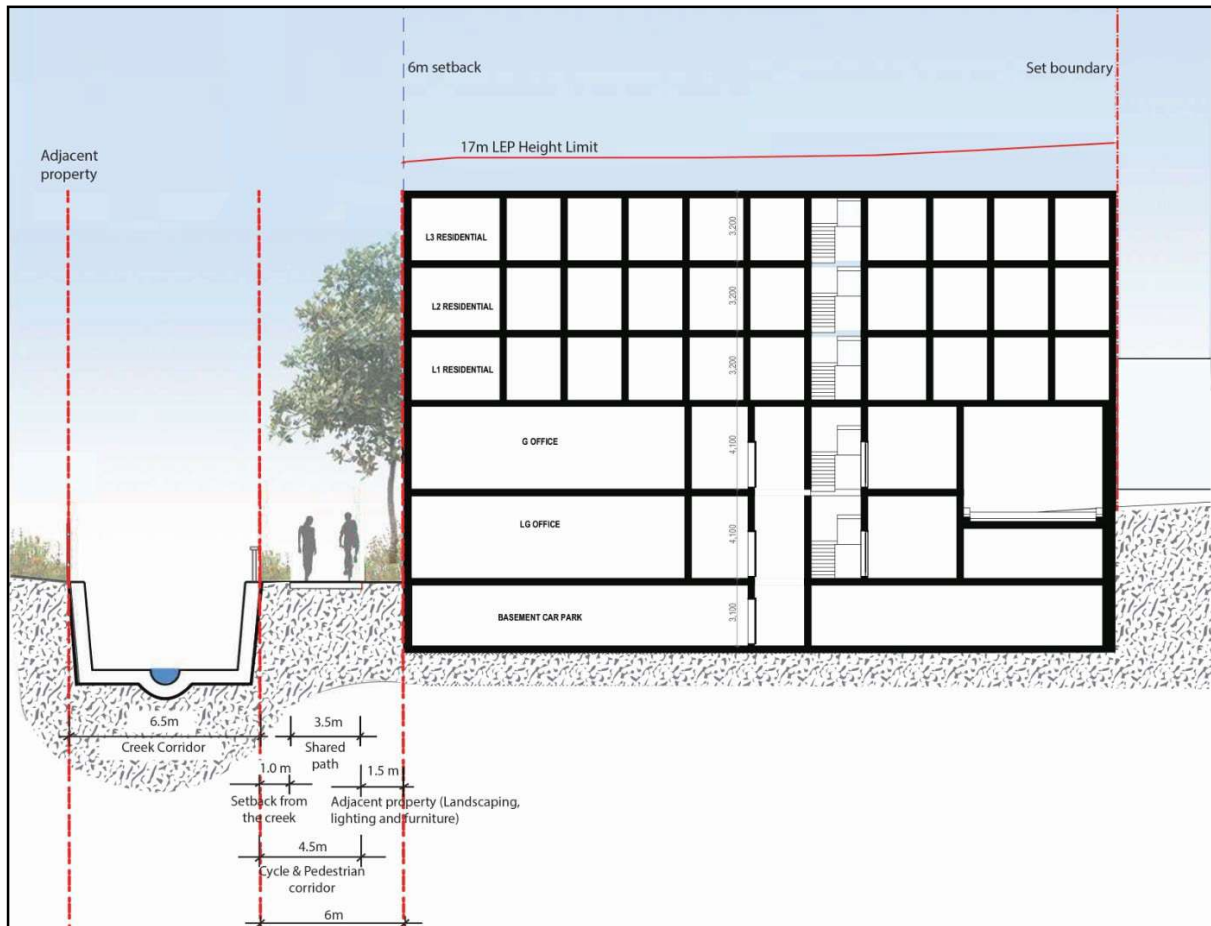


Figure G55: Indicative north-south section

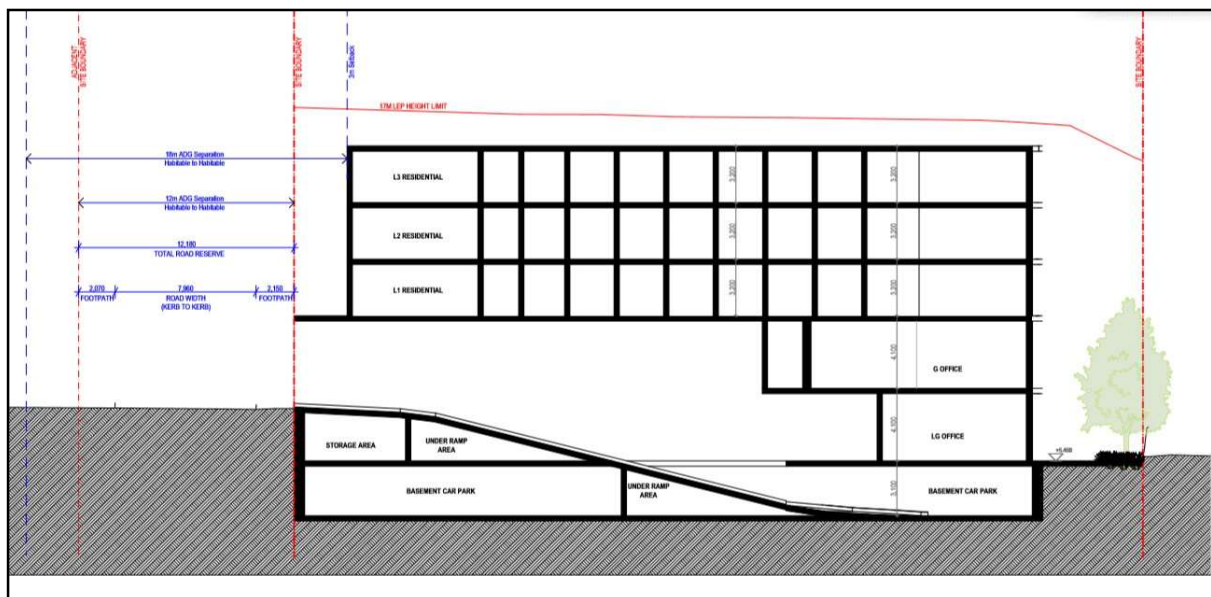


Figure G56: Indicative east-west section

G11.7 LAND USE

Objectives

- O1 To contribute to the evolution of Camperdown Precinct into a health and education precinct
- O2 To integrate a mix of uses on the site while minimising the potential for land use conflict.
- O3 To ensure non-residential uses do not adversely impact on the residential amenity within the site or of the surrounding area.
- O4 To ensure that student accommodation on the site does not impact upon the operation and viability of businesses both on the site and in the surrounding area.
- O5 To support employment uses including business and office premises and light industries in the technology, bio-medical, arts, production and design sectors.
- O6 To provide for boarding house development to accommodate student housing.
- O7 To maximise activity and surveillance along main pedestrian routes.
- O8 To ensure that any future redevelopment of the site will continue to support the health and education role of Camperdown precinct.

Controls

- C1 A minimum 980m² of flexible floor space is to be provided for a range of business and office premises and light industries.
- C2 Student housing is to be provided only on upper levels.
- C3 All employment floorspace is to have a minimum floor to ceiling height of 4m.
- C4 Residential lobby access should be provided from Chester Street.
- C5 The building design should minimise impacts between the employment uses and residential uses by:
 - a. separating employment pedestrian access from residential pedestrian access
 - b. designing and locating employment and residential services and equipment (eg. plant) to minimise adverse amenity impacts.
- C6 Street activation and passive surveillance of Chester Street is to be provided by locating employment uses fronting the street.
- C7 The student housing and employment uses are to be maintained and operated in a single entity. Strata subdivision, company or community title subdivision of the site is not permitted.

G11.8 SETBACK AND SEPARATION

Objectives

- O1 To reduce the apparent overall building bulk and scale and to provide a human scaled development when viewed from surrounding streets.
- O2 To provide an appropriate setback to Johnstons Creek to support its rehabilitation and greening and facilitate future connectivity along the creek corridor.
- O3 To provide a section of the Johnstons Creek pedestrian/cycleway that can become a section of the through-site link.
- O4 To allow for future redevelopment of adjacent lots.
- O5 To provide an appropriate transition in scale to adjoining properties.

Controls

- C1 Buildings (including basement) are to be setback at a minimum of 6m from the boundary fronting Johnstons Creek.
- C2 A 3m upper level setback is to be provided to residential uses along the Chester Street frontage as shown in Figure G56.
- C3 Appropriate setbacks and design measures to allow future redevelopment of neighbouring properties should be provided.

G11.9 STUDENT ACCOMMODATION

Objectives

- O1 Ensure an acceptable level of amenity and accommodation in the boarding house to meet the needs of residents.
- O2 Minimise the adverse impacts that can potentially be associated with student accommodation on adjoining properties and the vicinity.

Controls

- C1 The student accommodation should be well-designed using best practice examples to deliver a high standard of architectural, urban and landscape design.

G11.9.1 Bedrooms

- C2 The gross floor area of a bedroom is to be at least:
 - a. 12sqm (including 1.5sqm required for wardrobe space); plus
 - b. 4sqm when a second adult occupant is intended, which must be clearly shown on plans; plus
 - c. 2.1sqm for any en-suite, which must comprise a hand basin and toilet; plus
 - d. 0.8sqm for any shower in the en-suite; plus
 - e. 1.1sqm for any laundry, which must comprise a wash tub and washing machine; plus

- f. 2sqm for any kitchenette, which must comprise a small fridge, cupboards and shelves and a microwave.
- C3 Ensure the ceiling height in any bedroom containing double bunks is 2.7m. Triple bunks are not permitted.

G11.9.2 Communal kitchen areas

- C4 A communal kitchen area is to be provided with a minimum area that is the greater of 6.5sqm in total or 1.2sqm for each resident occupying a bedroom without a kitchenette.
- C5 The communal kitchen is to contain:
 - a. one sink for every 6 people, or part thereof, with running hot and cold water; and
 - b. one stove top cooker for every 6 people, or part thereof, with appropriate exhaust ventilation.
- C6 The communal kitchen is to contain, for each resident occupying a bedroom without a kitchenette:
 - a. 0.13 cubic metres of refrigerator storage space;
 - b. 0.05 cubic metres of freezer storage space; and
 - c. 0.30 cubic metres of lockable drawer or cupboard storage space.

G11.9.3 Communal living areas and open space

- C7 Provide indoor communal living areas with a minimum area of 12.5sqm or 1.25sqm per resident and a width of 3 metres. The communal living area can include any dining area, but cannot include bedrooms, bathrooms, laundries, reception area, storage, kitchens, car parking, loading docks, driveways, clothes drying areas, corridors and the like.
- C8 Indoor communal living areas are to be located:
 - a. Near commonly used spaces, such as kitchen, laundry, lobby entry area, or manager's office, with transparent internal doors, to enable natural surveillance from resident circulation;
 - b. adjacent to the communal open space, where appropriate;
 - c. on each level of a multi-storey boarding house, where appropriate; and
 - d. where they will have minimal impact on bedrooms and adjoining properties.
- C9 Communal open space is to be provided with a minimum area of 190 sqm.
- C10 Landscape treatment of the communal open space is to be maximised to promote cooling of the building and consist of native plants to the local area.
- C11 Communal outdoor open space is to be located and designed to:
 - a. generally be north-facing to meet the solar access requirements;
 - b. provide partial cover from weather;
 - c. incorporate soft or porous surfaces for 50% of the area;
 - d. be connected to communal indoor spaces, such as kitchens or living areas;

SITE SPECIFIC CONTROLS

- e. contain communal facilities such as barbecues, seating and pergolas where appropriate; and
 - f. be screened from adjoining properties and the public domain with plantings, such as a trellis with climbing vines.
- C12 30% of all bedrooms are to have access to private open space with a minimum area of 4sqm in the form of a balcony or terrace area.
- C13 The use of communal outdoor open space should cease by 10pm. Open space or outdoor areas should not be used for functions at any time and music, live or amplified should not be audible outside the premises at all times.

G11.9.4 Bathroom, laundry and drying facilities

- C14 Communal bathroom facilities accessible to all residents 24 hours per day are to be provided with at least:
 - a. one wash basin, with hot and cold water, and one toilet for every 10 residents, or part thereof, for each occupant of a room that does not contain an en suite; and
 - b. one shower or bath for every 10 residents, or part thereof, for each occupant of a room that does not contain a shower.
- C15 Laundry facilities are to be provided and include:
 - a. one 5kg capacity automatic washing machine and one domestic dryer for every 12 residents or part thereof; and
 - b. at least one large laundry tub with hot and cold running water.

G11.9.5 Amenity, safety and privacy

- C16 Boarding house is to maintain a high level of resident amenity, safety and privacy by ensuring:
 - a. communal spaces, including laundry, bathroom, kitchen and living areas are located in safe and accessible locations;
 - b. bedrooms are located so that they are separate from significant noise sources and incorporate adequate sound insulation to provide reasonable amenity between bedrooms and external noise sources;
 - c. structural fittings and fixtures for all internal rooms that enhance nonchemical pest management of the building, with all cracks and crevices sealed and insect screening to all openings;
- C17 Boarding house is to be designed to minimise and mitigate any impacts on the visual and acoustic privacy of neighbouring buildings by locating:
 - a. the main entry point at the front of the site, away from side boundary areas near adjoining properties;
 - b. screen fencing, plantings, and acoustic barriers in appropriate locations; and
 - c. double glazed windows where noise transmission affects neighbouring buildings.

G11.10 FINISHES AND MATERIALS

Objectives

- O1 To ensure that buildings have a high-quality appearance that enhance and activate the public domain.
- O2 To ensure that buildings respond to the character and heritage of the surrounding area.
- O3 To provide high quality, durable finishes and materials.

Controls

- C1 Building design is to respond to the surrounding industrial warehouse character and industrial heritage buildings including through the following:
 - a. Façade design which emphasises vertical rhythm (such as through brick pilasters and tall parapet masonry walls),
 - b. a higher solid to void ratio with similar sized windows at regular intervals, and
 - c. materials and finishes sympathetic to warehouse character.
- C2 Building articulation, design and materials are to provide an appropriate balance between the new development and the older character of the locality.
- C3 The use of face brickwork and or corbelling is encouraged.

G11.11 VISUAL AND ACOUSTIC PRIVACY

Objectives

- O1 To ensure viability of employment uses and residential amenity by providing appropriate separation of uses and excellent acoustic attenuation.
- O2 To minimise visual privacy and acoustic impacts to adjoining properties and in the site itself.

Controls

- C1 Employment uses are to include appropriate design and acoustic measures to ensure they do not have a significant adverse impact on the amenity of surrounding residential uses or future residents of the site.
- C2 Suitable acoustic attenuation measures are to be provided to the student housing rooms to ensure they are not adversely impacted by business and industrial uses on the site or within the surrounding area.
- C3 Implement sufficient slab treatment between employment uses and residential uses to ensure acoustic attenuation.
- C4 Incorporate construction methods and materials that insulate residential uses from noise transmission from employment uses.
- C5 Residential uses are oriented away from the adjacent industrial use at 17 Chester Street.

SITE SPECIFIC CONTROLS

- C6 An operating 'Plan of Management' is to be submitted with a development application for the boarding house and employment uses to ensure that these operate with minimal impact on adjoining properties and maintain a high level of amenity for residents.
- C7 Any development application is to be accompanied by a report prepared by an acoustic consultant verifying the adequacy of the proposed design and the construction methods and materials to achieve appropriate noise levels within the proposed residential accommodation. Consideration should be given to potential noise generated by both existing and future non-residential uses on the site and in the surrounding area.

G11.12 DEEP SOIL AREA AND LANDSCAPING

Objectives

- O1 To ensure occupants are provided with a reasonable level of outdoor amenity and access to green space.
- O2 To enhance the interface with Johnstons Creek and contribute to its greening and rehabilitation.
- O3 To provide a landscaped section of pedestrian/cycle way along Johnstons Creek.
- O4 To ensure that the development incorporates consolidated deep soil areas of sufficient size and dimension to accommodate significant tree plantings and other plants, and provide optimal growing conditions.
- O5 To ensure the amenity of residents, workers and visitors is enhanced by high quality landscaping.
- O6 To enhance the landform and landscape of the interface between the development and Johnstons Creek

Controls

- C1 A minimum of 17.4% of the site area is to be provided as deep soil, predominantly fronting Johnstons Creek.
- C2 Landscaping and mature tree planting with large canopy trees shall achieve 15% site canopy coverage.
- C3 The ground levels and landscaping of the pedestrian and cycle path should provide an appropriate interface to the creek and match the corresponding characteristics of the Douglas Grant Park, where practical.
- C4 The through-site link should be constructed to allow seamless integration of the path with the future sections of the path along neighbouring properties to the north and south of the site.
- C5 Landscaping along the Johnstons Creek corridor is to contribute to the wider greening and rehabilitation of the creek and enhance the visual outlook of the areas surrounding the creek.
- C6 The basement level of the development needs to be appropriately screened to ensure it does not present a blank wall to Johnstons Creek.
- C7 Provide a landscaped pedestrian/cycle path adjacent to Johnstons Creek.

SITE SPECIFIC CONTROLS

- C8 Overhead power cables along the frontages of the site must be relocated underground and replaced with appropriate street lighting that relates to the scale of the development and the significant aesthetic benefit that will result from undergrounding including allowing for viable street tree planting.
- C9 Incorporate new street trees along Chester Street to contribute to the greening of the street.

G11.13 SOLAR ACCESS

Objectives

- O1 To minimise the overshadowing impacts of development within the site and on adjoining properties.
- O2 To maximise solar access to the communal indoor and open space.

Controls

- C1 Provide an indicative design for 17 Chester Street to test overshadowing impacts and ensure the development potential of this adjoining site is not unduly constrained and that the two sites can be developed in a holistic way.
- C2 At least 65% of habitable rooms within the boarding house must provide a window positioned within 30 degrees east and 20 degrees west of true north and allow for direct sunlight over minimum 50% of the glazed surface for at least two hours between 9.00am and 3.00pm on 21 June.
- C3 Each bedroom must have access to natural light, from a window or door with a minimum aggregate area of 10% of the floor area of the room. Skylights are not to be the sole source of light.
- C4 Indoor communal areas are to receive a minimum 2 hours solar access to at least 50% of the windows during 9am and 3pm on 21 June.
- C5 The communal open space is to receive a minimum of 2 hours of solar access between 9am and 3pm on the 21 June to at least 50% of its area.

G11.14 PARKING AND ACCESS

Objectives

- O1 To ensure safe and efficient access to and from the site for a range of non-residential uses.
- O2 To minimise car parking to encourage active transport and car sharing.
- O3 Minimise the potential risks of flooding of the underground car park.

Controls

- C1 Basement access must accommodate medium rigid vehicles movements to service light industrial uses.
- C2 No private car parking will be provided for the student accommodation, with the exception of one accessible space for a boarding house manager.

SITE SPECIFIC CONTROLS

- C3 A maximum car parking rate of 1 per 150m² of employment floor space.
- C4 Car share spaces should be provided at a rate of 1 space per 50 student housing rooms.
- C5 At least one bicycle parking space is to be provided for every 3 student housing rooms, at least 1 visitor bicycle space per 10 student housing rooms and at least 1 motorcycle space per 5 student housing rooms.
- C6 Ensure that the car park entry level is above RL5.45 AHD to minimise flood risk.
- C7 Vehicular entries are to be designed to minimise the visibility of garage doors from the street.
- C8 Provide a clear street address for residential entries.
- C9 Vehicular access to the site shall minimise potential pedestrian and vehicular conflicts.
- C10 Ingress and egress from the site shall be in a forward direction.
- C11 The development application is to be supported by a traffic report prepared by a suitably qualified person, addressing as a minimum the following factors:
 - a. the prevailing traffic conditions;
 - b. the likely impact of the proposed development on existing traffic flows and the surrounding street system;
 - c. pedestrian and traffic safety; and
 - d. an assessment of the impacts from any proposed on- site parking.
- C12 The traffic report is to demonstrate that manoeuvring of service vehicles associated with the proposed development can be accommodated on site or at the end of the cul-de-sac on Chester Street.

G11.15 ENVIRONMENTAL MANAGEMENT

Objectives

- O1 To ensure that the new development applies the principles of ecologically sustainable development.
- O2 To reduce environmental impacts of the development.
- O3 To encourage improved environmental performance through the use of industry recognised building rating tools.
- O4 To future-proof development to accommodate the emergence of electric vehicles.
- O5 To reduce the cause and impacts of urban island heat effects.

Controls

- C1 The development is to achieve a minimum 4-star Green Building Council rating.
- C2 Rainwater capture is to be provided for re-use on site.
- C3 Development must increase urban green cover on the site through tree planting, mass planted garden beds, WSUD, green roof and walls.

SITE SPECIFIC CONTROLS

- C4 Basement car parking areas are to be designed so that electric charging points can be installed in the future.
- C5 Non-residential development is to be designed to minimise the need for active heating and cooling by incorporating passive design measures related to glazing, natural ventilation, thermal mass, external shading and vegetation.
- C6 The installation and use of photovoltaic solar panels is encouraged. Where possible, solar panels should be co-located with green roofs to increase the operational efficiency of the solar panels.
- C7 Natural clothes drying facilities are encouraged to reduce energy consumption.

G11.15.1 Water Sensitive Urban Design (WSUD)

- C8 The development should adopt an integrated approach to water cycle management and address water conservation, efficiency, stormwater management, drainage and flooding through a coordinated process.
- C9 A suitably qualified engineer with experience in stormwater, drainage and WSUD is to assess the site requirements for the proposed development, and prepare the required stormwater, drainage and WSUD plans in accordance with the provisions of this DCP and best practice sustainable water management techniques.
- C10 Design the site to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.
- C11 Where filtration and bio-retention devices are proposed, they are to be designed to capture and provide temporary storage for stormwater.

G11.16 WASTE MANAGEMENT

Objectives

- O1 To ensure that adequate on-site provision is made for the temporary storage and disposal of waste and recyclable materials.
- O2 To ensure that opportunities to maximise source separation and recovery of recyclable are integrated into the development.
- O3 To minimise risk to health and safety associated with handling and disposal of waste and recycled material and the potential for adverse environmental impacts associated with waste management.

Controls

- C1 Waste and recycling storage areas are to be located, designed and constructed to ensure integration with the Chester Street streetscape.
- C2 Residential and commercial waste areas are to be separated with separate accesses.
- C3 Waste and recycling facilities must be managed in acoustically treated areas to minimise the noise of collection.
- C4 A completed Site Waste Minimisation and Waste Management Plan (SWMMP) addressing ongoing waste and resource recovery for both residential and employment components of the development is to be submitted. The SWMMP is to include details of the following:

- types and estimated quantities of the predicted waste streams
- size and location of recycling and waste storage areas, including bulky waste
- routes of access and transfer from source to storage areas for all users
- routes of transfer from storage areas to collection point
- access route for waste and recycling collection vehicle
- ongoing management, including responsibility for cleaning and transfer of bins between storage areas and collection points, implementation and maintenance of relevant signage, and ongoing education of all residents/tenants

G11.16.1 Residential Waste Controls

- C5 Access to garbage and recycling disposal points is to be provided on each residential level, either in the form of inlet hoppers or bin storage areas. A waste chute is advisable for a building that is 4 storeys or more.
- C6 A dedicated space (room or caged area) is to be provided within or in close proximity to the bin storage area for the interim storage and management of Council-collected bulky waste and mattresses. A minimum of 8m² is to be provided for every 50 rooms.
- C7 Additional communal space is to be provided for the separate recovery of materials including (but not limited to) textiles, hazardous, e-waste, polystyrene, materials under product stewardship schemes and problem wastes. A minimum of 2m² is to be provided for every 50 rooms.

G11.16.2 Non-Residential Waste Controls

- C8 A minimum of 4m² of dedicated space is to be provided for every 500m² of non-residential floor space for the interim storage of bulky or fit-out waste, paper, cardboard packaging, batteries, equipment containing printed circuit boards, computers, televisions, fluorescent tubes or other recyclable resources from the waste stream.
- C9 Space must be provided on-site in reasonable proximity to retail or commercial premises to store re-usable commercial items such as crates, pallets, kegs and polystyrene packaging.

G11.17 VISUAL IMPACT TO HERITAGE CONSERVATION AREAS AND HERITAGE ITEMS

Objectives

- O1 To minimise visual impacts to the Annandale Heritage Conservation Area (HCA) and heritage items

Controls

- C1 A Heritage Impact Statement (HIS) is to be submitted with any development application for the redevelopment of the Precinct, addressing the impact of the proposed works on the Annandale HCA and heritage items in the vicinity of the proposal.

SECTION 12 – 36 LONSDALE STREET AND 64–70 BRENNAN STREET, LILYFIELD

G12.1 LAND TO WHICH THIS SECTION APPLIES

This section applies to 36 Lonsdale Street and 64-70 Brennan Street, Lilyfield, being Lots 2–4, DP 1257743, Lots 1 and 2, DP 529451, Lot 22, DP 977323 and Lot 1, DP 1057904.

The site has an area of 2,145m² and is located on the southern side of City West Link Road/Brennan Road between Russell Street and Lonsdale Street.

Map Reference

Refer to Area 11 on the map in *Figure G1 – Site Specific Areas*.

G12.2 BACKGROUND

This site-specific section of Leichhardt Development Control Plan 2013 (LDCP) has been developed to support appropriate built form outcomes as per the site-specific provisions contained in Inner West Local Environmental Plan 2022 (IWLEP) Part 6 Additional Local Provisions which allow increased height of building (HOB) and floor space ratio (FSR) for the site.

G12.3 RELATIONSHIP TO OTHER SECTIONS OF THIS DCP

Unless otherwise stated, development on the site should be designed and constructed in accordance with the controls in this section and the provisions of this plan.

In the event of an inconsistency between this site-specific section and the remaining provisions of the LDCP, the controls in this section will prevail in relation to development on the site to the extent of the inconsistency.

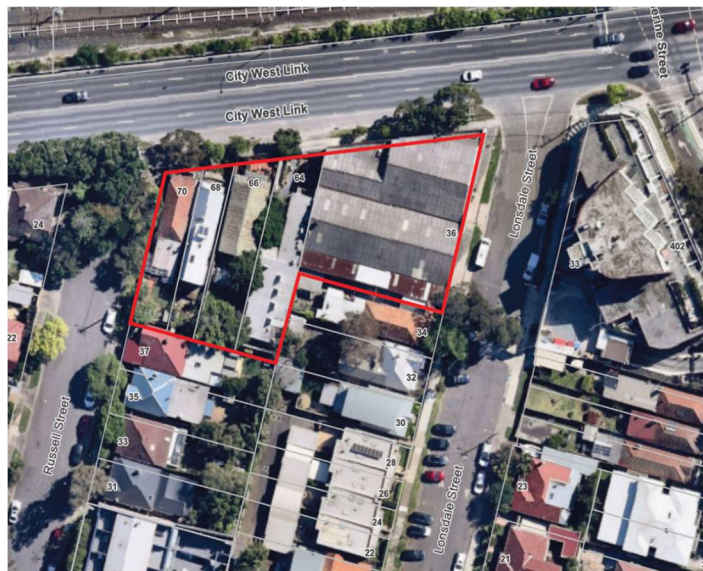


Figure G57: Location Plan

G12.4 GENERAL OBJECTIVES

- O1 Apply site specific controls/guidelines which take into account the site's unique conditions to ensure an acceptable development outcome.
- O2 To respond to the existing and future context and character of the area.
- O3 To achieve architectural and urban design excellence.
- O4 To enhance and activate the public domain.
- O5 To maintain adequate solar access and amenity to adjacent residences in Lonsdale Street and Russell Street.
- O6 To ensure good amenity for future residents of the development.
- O7 To encourage active transport and public transport mode share.
- O8 To ensure an ecologically sustainable development outcome.

G12.5 DESIRED FUTURE CHARACTER STATEMENT

The site is located in the 'Peripheral Sub Area' of the Catherine Street Distinctive Neighbourhood in Lilyfield (Section C2.2.4.1 of the LDCP 2013).

The new development should:

- O1 Achieve architectural design excellence using appropriate building composition which enhances the site and is also sympathetic to the local density residential character of Lonsdale Street and Russell Street.
- O2 Protect and enhance the residential amenity of neighbouring dwellings and ensure the amenity of residents within the development.
- O3 Enhance and activate the surrounding public domain.
- O4 Provide a landscaped setting to the foreground of buildings within the site and enhance the streetscape.

G12.6 LOT AMALGAMATION

Objectives

- O1 To ensure lot amalgamation promotes the orderly redevelopment of site for intended uses and identified built form.

Controls

- C1 New development on the site is to follow the lot amalgamation pattern identified in Figure 2.

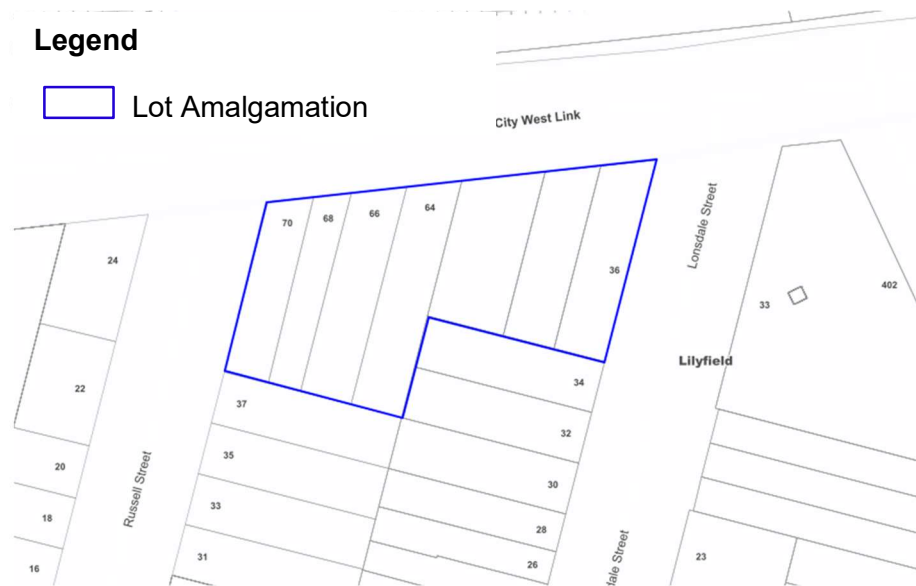


Figure G58: Lot Amalgamation Pattern

G12.7 BUILT FORM, HEIGHT AND DESIGN

Objectives

- O1 Achieve architectural design excellence using appropriate building composition which enhances the site and is also sympathetic to the local density residential character of Lonsdale Street and Russell Street.
- O2 To integrate new high-quality buildings with neighbouring buildings by having an appropriate transition of building height and scale.
- O3 To provide appropriate building form, height and articulation to reduce apparent bulk and minimise impacts on the surrounding area including adjacent dwellings and their open space.
- O4 To minimise overlooking and overshadowing of neighbouring properties.

Controls

- C1 All roof structures, such as plant and lift overruns shall be integrated into the design of the development, are not to exceed the building heights contained within IWLEP 2022 and are to be fully screened when viewed from street. The maximum height of building is RL 33.2 with a maximum of 5 storeys at City West Link Road and a transition to 2 storeys adjacent to the houses at Lonsdale Street and Russell Street.
- C2 The built form height envelopes are to comply with **Figures 4 and 5** with buildings having a transition in height to a maximum of 5 storeys at City West Link Road as follows:
 - buildings have a maximum ceiling height of RL 24.7 being an equivalent of a two storey scale relative to the adjacent houses in Lonsdale Street
 - buildings have a maximum ceiling height of RL 27.8 an equivalent of a two storey scale relative to the adjacent houses at Russell Street.

- C3 No residential uses are to be contained at ground level along City West Link Road.
- C4 Minimise blank walls along City West Link Road to provide appropriate streetscape treatment and passive surveillance of the public domain.
- C5 Top of building roof structure slab for the five storey building component in **Figure 4 and 5** should be a maximum at approximately RL 30.7 to accommodate roof structures such as lift overrun.
- C6 Subject to approval from the relevant consent authority (Transport for NSW), the overhead power cables along City West Link Road must be relocated underground and replaced with appropriate street lighting in accordance with Council's relevant public domain guidelines given the scale of the development and the significant aesthetic benefit resulting from undergrounding, including allowing for viable street tree planting.

If approval from the consent authority (Transport for NSW) is not obtained, then buildings are to be setback along City West Link Road at a sufficient distance to maintain safety and maintenance of high voltage cables.

- C7 The proposed building location and site layout should be consistent with that shown in **Figure 3** to achieve buildings oriented predominantly to Lonsdale Street and Russell Street with appropriate amenity for occupants, a landscape setting and tree canopy, middle ground/ podium level communal open space area, landscaped buffer to adjacent houses and to comply with other parts of this DCP.
- C8 For part of the site area along City West Link Road beginning at the Lonsdale Street corner, consider provision of employment floorspace as part of an apartment above (live-work units) or as non-residential/ employment floor space permitted in the relevant Zoning under IWLEP 2022. The employment floor space must be setback by at least 3m from City West Link Road with appropriate public domain treatment (including new landscaping, awning at the intersection of Lonsdale Street/ City West Link) and be in accordance with **Figures 3, 4 and 6**.
- C9 A minimum of 3m building setback from City West Link is to be provided along ground floor and to all upper level residential storeys in accordance with Section G12.8 Controls and **Figures 3 and 4**.

Continued on next page

SITE SPECIFIC CONTROLS



LEGEND

- Deep Soil
- Communal Open Space
- Entry to residential lift lobby
- △ Vehicular access to basement carpark
- St** Residential storeys above basement carpark

Figure G59: Indicative site plan

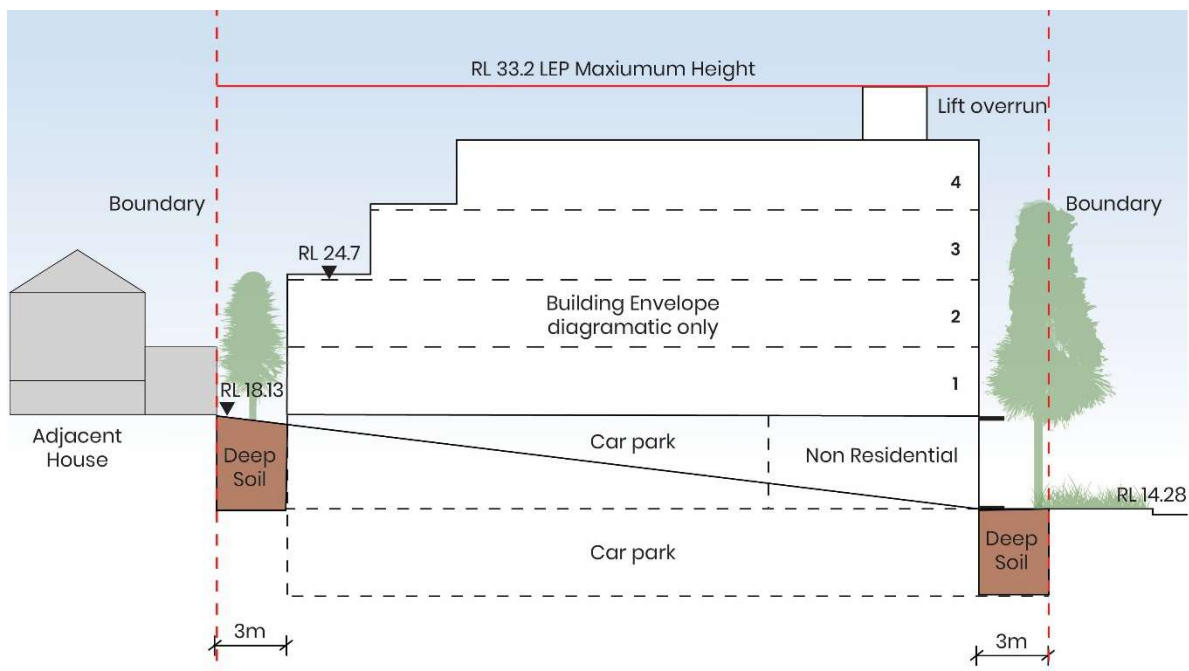
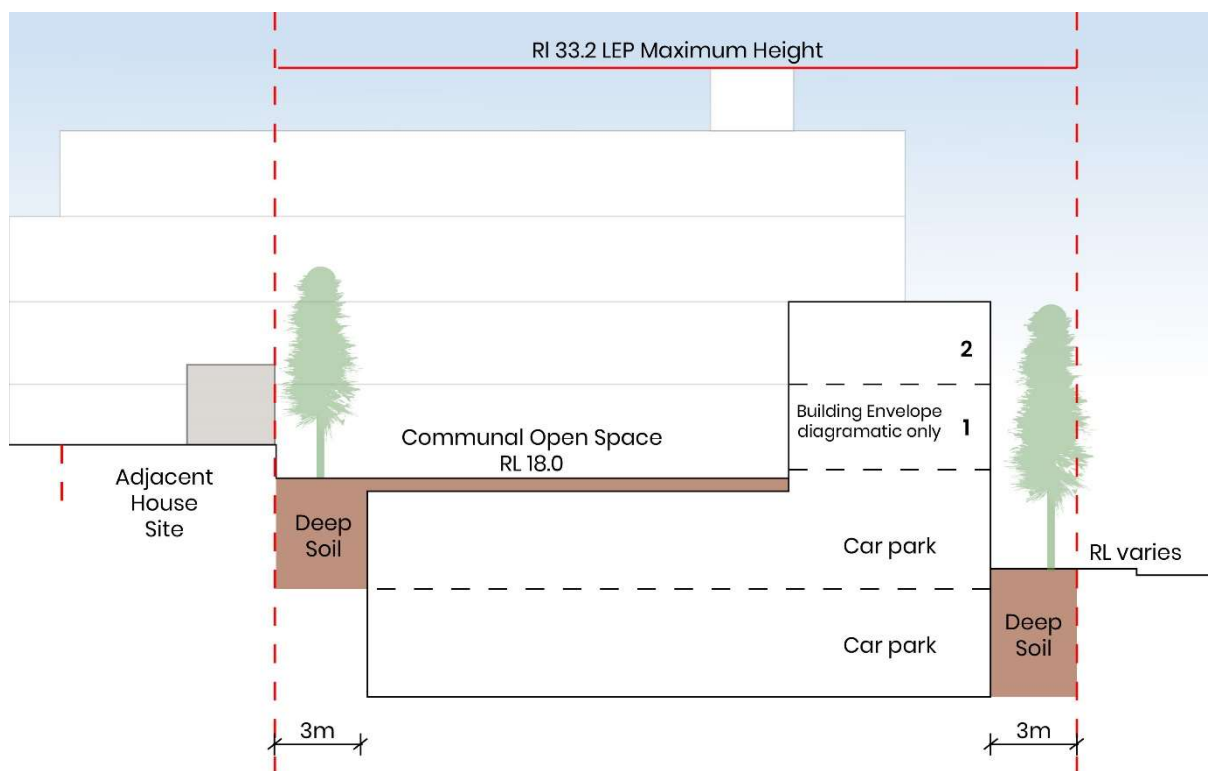
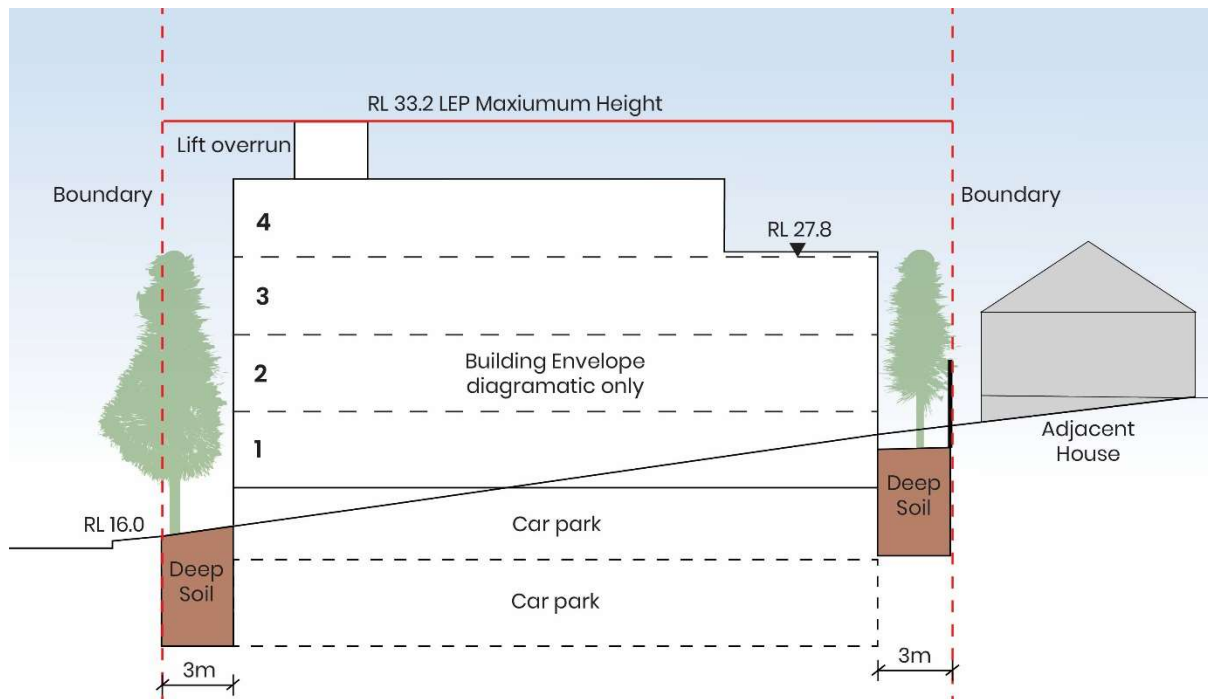


Figure G60: Indicative elevation envelope along Lonsdale Street



G12.8 SETBACKS AND SEPARATION

Objectives

- O1 Achieve adequate building separation to maintain privacy between buildings.
- O2 To accommodate deep soil planting and landscaping to enhance the streetscape and provide for tree canopy.
- O3 Achieve adequate building separation between buildings and adjoining houses.
- O4 Achieve adequate separation from high voltage powerlines along City West Link Road.
- O5 To provide appropriate public domain treatment along City West Link which enhances the streetscape.

Controls

- C1 Buildings are to be setback a minimum of 3m inclusive of below ground carpark levels from City West Link Road, Lonsdale Street and Russell Street.
- C2 Buildings are to be setback by a minimum of 3m from lot boundaries of the dwelling houses fronting Lonsdale Street and Russell Street inclusive of car parking/ basement levels.
- C3 Within the site, Building Separation is to comply with the State Environmental Planning Policy 65 Apartment Design Part 2F and be generally in accordance with **Figure 3**.
- C4 Building design at the intersection of streets including Lonsdale Street and City West Link is to:
 - a. be splayed at the corner to reinforce the corner location as appropriate
 - b. incorporate awning where possible to complement the desired employment use
 - c. include a 3m wide setback along City West Link frontage which should:
 - provide new landscaping and kerbside treatment as per Figure 6;
 - be made available to public 24 X 7 for walking and cycling; and
 - be registered on title as easement or public right of way.

G12.9 DESIGN, FINISHES AND MATERIALS

Objectives

- O1 To ensure that buildings have a high quality appearance and enhance and activate the public domain.
- O2 To ensure that buildings respond to the residential character of Lonsdale Street and Russell Street.
- O3 To provide high quality and durable finishes and materials.

Controls

- C1 Building design is to be well considered and demonstrate that architectural canons for providing well considered composition and proportions and a dialogue between parts of the building have been achieved.
- C2 Building design is to provide architectural cues to complement adjacent and nearby houses.

SITE SPECIFIC CONTROLS

- C3 Exterior building finishes should use a variety of materials, including the use of face brickwork.
- C4 The ground floor treatment along City West Link Road and surrounds is to be differentiated from the upper parts of the building and conceal any internal carpark use through appropriate use of architectural details and finishes including considering provision of green walls. Use of a tripartite base middle top composition is encouraged.
- C5 Relocate existing overhead cables underground, and where possible, co-locate with other underground services. Buildings are to be setback along City West Link Road at a sufficient distance to maintain safety and maintenance of high voltage cables from City West Link Road as required by Transport NSW, where services can't be located underground.

G12.10 VISUAL AND ACOUSTIC AMENITY

Objectives

- O1 To minimise the noise impacts of City West Link Road for residents.
- O2 To minimise direct overlooking and maximise visual privacy of adjacent dwelling houses in Lonsdale and Russell Streets and within the precinct itself.

Controls

- C1 The majority of dwellings should be oriented toward Lonsdale and Russell Street.
- C2 A slim building wing no higher than 3 storeys off City West Link Road, or noise screen, shall be provided to the building frontage along City West Link Road to reduce noise in the middle communal open space area for the amenity of residents, as shown in **Figure 3**.
- C3 Dwellings should have "winter garden balconies" as defined in Apartment Design Guide Part 4J/Glossary.
- C4 Dwellings adjacent or in close proximity to houses on Lonsdale Street and Russell Street shall not have windows which directly face those houses, except for rooms containing highlight windows with a minimum sill height of 1.7m.
- C5 Any development application is to be accompanied by a report prepared by an appropriately qualified acoustic consultant verifying the adequacy of the proposed design and the construction methods and materials to achieve appropriate noise levels within the proposed residential accommodation as well as the communal open space.
- C6 A tree buffer with deep soil planting shall be provided along boundaries with Lonsdale Street and Russell Street in accordance with **Figure 3**.

G12.11 COMMUNAL OPEN SPACE, DEEP SOIL AREA AND LANDSCAPING

Objectives

- O1 To ensure occupants are provided with usable communal open space in a location onsite which has adequate amenity.
- O2 To provide deep soil planting, green walls and landscaping to enhance the streetscape and provide for tree canopy.
- O3 To provide for amenity and a visual buffer for adjacent houses in Lonsdale Street and Russell Street.

Controls

- C1 Landscaping is to comply with the provisions contained within the LDCP 2013, part C1.12 Tree Management and 40% tree canopy target for an R1 General Residential land use zoning.
- C2 Deep soil areas and gardens are to be provided along Lonsdale Street, Russell Street, City West Link Road and the southern boundary of the site adjacent to neighbouring low density dwellings with building setbacks in accordance with Section G12.8, Control C1 and **Figure 3**.
- C3 A ground level communal open space area is to be located generally in accordance with **Figure 3**, this should include topsoil above the carpark area sufficient to accommodate small trees and a grass area.
- C4 Communal Open Space areas are to be provided in accordance with the requirements of the Apartment Design Guide part 3D.
- C5 Any rooftop open space is to provide adequate screening for the privacy of neighbouring dwelling houses.
- C6 Provide minimum 35 percent area of green walls being trellises and plantings to the upper building levels façades facing City West Link Road.

G12.12 DISABLED ACCESS

Objectives

- O1 To provide for equitable access.

Controls

- C1 Compliance shall be demonstrated on the Development Application for provision of access from surrounding streets to areas within the site and up to the point of entry into dwellings, for people with disabilities.
- C2 A legible pathway should be provided within the site to shared areas including the communal open space and carpark areas.
- C3 Use of platinum level standard Universal Design is encouraged for dwellings.

G12.13 PARKING ACCESS AND WASTE

Objectives

- O1 To ensure safe, efficient and equitable vehicular access to and from the site.
- O2 To minimise car parking to encourage active transport and public transport.
- O3 Ensure that carparking access is provided from Lonsdale Street for the new development.
- O4 Basement parking contains required servicing areas including waste storage and deliveries.
- O5 Address matters unique to the site pertaining to local roads.

Controls

- C1 All car parking and bicycle parking shall comply with the provisions contained in the LDCP 2013, Part C, Parking C1.11.
- C2 All vehicular access must be from Lonsdale Street only (in and out). All vehicles need to enter and exit the site in a forward direction. Swept paths should be provided as part of Transport Impact Assessment (TIA).
- C3 Basement areas must accommodate waste storage rooms and servicing areas and not be visible from the street. Waste management facilities are to comply with the Resource Recovery and Waste Management provisions contained in D2.5 Mixed Use Development of this plan.
- C4 A Construction Pedestrian Traffic Management Plan (CPTMP) detailing construction vehicle routes, number of trucks, hour of operation, access arrangements, locations of the crane(s) and traffic control shall be submitted with the Development Application.
- C5 Prior to the issue of any construction certificate or any preparatory, demolition or excavation works, whichever is earlier, the following documentation in relation to rail safety shall be provided for the review and endorsement of TfNSW:
- Final geo-technical and structural report / drawings. Geotechnical reports should include and potential impact on the Inner West Light rail corridor;
 - Final construction methodology pertaining to structural support during excavation or ground penetration;
 - If required by TfNSW, details of the vibration and movement monitoring system that will be in place before excavation commences;
 - Detailed survey plan with location of light rail and associated services; and
 - Plans regarding proposed crane and other aerial operations.
- C6 All demolition and construction vehicles are to be contained wholly within the site and vehicles must enter the site before stopping. A construction zone will not be permitted on City-West Link Road.
- C7 No direct vehicular access will be provided to / from the site to / from City West Link (Brenan Street).
- C8 Vehicular entries are to be designed to minimise the visibility of garage doors on the street.
- C9 Pedestrian access to the new development for residential flat buildings is to be provided from Lonsdale Street and Russell Street.

G12.14 ENVIRONMENTAL MANAGEMENT

Objectives

- O1 To ensure that the new development maximises the principles of ecologically sustainable development.
- O2 To reduce the cause and impact of the urban island heat effect.

Controls

- C1 Dwellings are required to comply with the BASIX State Environmental Planning Policy. In addition, consideration is to be given to maximizing dwellings with “cross through” apartment layouts to achieve increased cross ventilation and solar access.
- C2 Deep soil areas for dense Tree Canopy are to be provided in accordance with Section G12.8, Controls, clauses C1 and C2 and **Figure 3**.
- C3 Landscaping is to be provided to the communal open space area in accordance with Section G12.11, Controls, clause C3.
- C4 The development is to achieve a minimum 4-star Green Building Council rating and incorporate Water Sensitive Urban Design to its communal open space areas.